

TENTATIVE RULING

Case: **Bolton v. Ahmed et al.**
Case No. CV-2024-2310

Hearing Date: **January 20, 2026** **Department Fourteen** **9:00 a.m.**

The Court, in its discretion, considers defendant Aala Ahmed's untimely opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

Defendants/cross-complainants Jagdish Thind and Sierra Gold Nurseries, Inc.'s motion to contest defendant Aala Ahmed's application for determination of good faith settlement is **GRANTED**. (Code Civ. Proc., § 877.6, subd. (a)(2).) The Court finds that defendant's application is insufficient; thus, the Court cannot determine if the settlement was made in good faith. (Code Civ. Proc., § 877.6, subd. (b); *Tech Bilt, Inc. v. Woodward-Clyde & Assocs.* (1985) 38 Cal.3d 488, 499 [*Tech-Bilt*].) Specifically, defendant fails to state: (1) the reasoning for the range provided regarding plaintiff's anticipated total recovery; (2) the reasoning why the settlement amount is reasonable based on the rough approximation of defendant's proportionate liability; (3) how this settlement impacts any potential settlement/payment of a verdict in the consolidated case of *Boston v. Ahmed et al.*, Yolo County Superior Court case number CV-2025-2103; and (4) defendant's financial condition. (See *Tech Bilt, supra*, at p. 499.) Additionally, the Court could not determine whether the settlement is confidential, in which case Code of Civil Procedure section 877.6(a)(2) may not be utilized.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Capital One, N.A. v. Cesaire**
 Case No. CV-2025-3423

Hearing Date: **January 20, 2026** **Department Eleven** **9:00 a.m.**

Defendant Jerry Cesaire's unopposed motion to compel arbitration and to stay proceedings is **GRANTED**. (Code Civ. Proc., §§ 1281.2, 1281.4; Cesaire decl., ¶¶ 1-6, Exhibit A.)

This case is **STAYED** pending the completion of arbitration. (Code Civ. Proc., § 1281.4.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.